

		court to do what it never intended....” (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471-472.) Plaintiff has not demonstrated an extrinsic mistake that led to his attorney requesting the dismissal of Holley. Counsel states they requested Holley’s dismissal because they believed Holley had not been served with the Complaint. This is an intrinsic mistake to the litigation and to Plaintiff’s counsel. Thus, the Court declines to exercise its equitable power in the absence of appropriate circumstances authorizing its use.
11	24-01407733 <i>Townsend vs. Ford Motor Company</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Production 4) Motion to Compel Response to Requests for Admissions Form Interrogatories Defendant Ford Motor Company’s Motion to Compel Responses to Form Interrogatories is GRANTED. Plaintiff is ORDERED to serve responses to Defendant’s Form Interrogatories (set one) without objections within 20 days of this order. (See Code Civ. Proc., § 2030.290(a).) Defendant’s request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290(a)(1)-(2).) Plaintiff has only offered an explanation as to why he did not serve responses nearly a year after the responses were originally due. “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2030.290(c).)

Plaintiff's opposition is not substantially justified because Plaintiff has failed to provide any justification for failing to initially serve his responses. Thus, sanctions are mandatory.

Special Interrogatories

Defendant Ford Motor Company's Motion to Compel Responses to Special Interrogatories is GRANTED.

Plaintiff is ORDERED to serve responses to Defendant's Special Interrogatories (set one) without objections within 20 days of this order. (See Code Civ. Proc., § 2030.290(a).)

Defendant's request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290(a)(1)-(2).) Plaintiff has only offered an explanation as to why he did not serve responses nearly a year after the responses were originally due.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2030.290(c).)

Plaintiff's opposition is not substantially justified because Plaintiff has failed to provide any justification for failing to initially serve his responses. Thus, sanctions are mandatory.

Requests for Production

Defendant Ford Motor Company's Motion to Compel Responses to Requests for Production is GRANTED.

Plaintiff is ORDERED to serve responses to Defendant's Requests for Production (set one) without objections within 20 days of this order. (See Code Civ. Proc., § 2031.300(a).)

Defendant's request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300(a)(1)-(2).) Plaintiff has only offered an explanation as to why he did not serve responses nearly a year after the responses were originally due.

"Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2031.300(c).)

Plaintiff's opposition is not substantially justified because Plaintiff has failed to provide any justification for failing to initially serve his responses. Thus, sanctions are mandatory.

Requests for Admission

Defendant Ford Motor Company's Motion Deeming the Truth of Facts and Genuineness of Documents Requested in its Requests for Admission (set one) is GRANTED.

The Court ORDERS the truth of any matters and genuineness of any documents specific in Defendant's Requests for Admission (set one) be deemed admitted. (Code Civ. Proc., § 2033.280(b).)

Defendant's request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections to every request. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280(a)(1)-(2).) Plaintiff has only offered an explanation as

		to why he did not serve responses nearly a year after the responses were originally due. Further, the improper objections are not in substantial compliance with Section 2033.220 which does not authorize objections. “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280(c).)
12	24-01393087 <i>Vatics, Inc. vs. SkyBell Technologies Inc.</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Noah Green of The Green Firm, P.C. to withdraw as attorney of record for Defendant Skybell Technologies, Inc. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.